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## Appeal Decision

Site visit made on 9 April 2026

by **CM Blair BSc (Hons) MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 27<sup>th</sup> August 2026

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### Appeal Ref: 6004344

#### Norbryght, Tilburstow Hill Road, South Godstone RH9 8NA

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for planning permission.
  - The appeal is made by Mr Akhtar against Tandridge District Council.
  - The application Ref is 2025/837.
  - The development proposed is demolition of a storage barn and erection of a new dwelling with associated parking and garden area.
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### Decision

1. The appeal is dismissed and planning permission for demolition of a storage barn and erection of a new dwelling with associated parking and garden area is refused.

### Preliminary Matters

2. As this is a failure case I have no formal decision notice from the Council. The main issues are based on the areas of dispute identified in the Council's statement of case.
3. The appellant has submitted revised plans with their final statement. The Procedural Guide for Planning Appeals<sup>1</sup> is clear that the appeal process should not be used to evolve a scheme and that acceptance of such evidence is at the discretion of the Inspector. The revised plans include an amended internal reconfiguration of space to aim to address national space standards' requirements, and an indicative garden layout of the adjoining Norbryght House, with it put to me that this would comprise shared amenity space with the appeal site. Both would materially alter the proposal. Thus, to avoid prejudice to any other party I have determined the appeal on the basis of the plans, which were being considered by the Council during the planning application stage.
4. A new version of the National Planning Policy Framework (the Framework) was issued on 17 August 2026. Annex 1A makes clear that I am required to assess the appeal proposal against this version of the Framework. I do not consider that there is any need to revert to the main parties regarding this because the new policies for decision-making in it do not substantially alter the national policy context from the previous NPPF version, certainly not in a way that would alter the outcome of my decision. Any reference to the Framework refers to policies within this new version.

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<sup>1</sup> [Procedural Guide: Planning appeals – England. For appeals relating to applications dated on or before 31 March 2026. - GOV.UK](#)

## Main Issues

5. The main issues are:

- Whether the proposal would be inappropriate development in the Green Belt;
- The effect of the proposed development on the character and appearance of the area;
- Whether acceptable living conditions would be created for future occupants;
- The effect on highway safety;
- Whether the proposed development would be sustainably located; and
- The effect on flood risk.

## Reasons

### *Green Belt*

6. It is common ground between the main parties that the proposed development would be located on previously developed land. Notwithstanding my conclusions about the effects on character and appearance, the proposal would not cause substantial harm to the openness of the Green Belt. Factors influencing my view include the scale of the proposal compared to the barn that would be replaced and an assessment of the spatial and visual aspects of openness. It would therefore be an exception as specified within Policy GB7 sub-paragraph 1.e. of the Framework.
7. In reaching a view on this issue I have paid regard to the previous appeal decision for development at the site<sup>2</sup>. That decision was based on an absence of detail to assess the impacts on openness, in light of the outline nature of that proposal. The detail is present in the current case.
8. For these reasons, the proposal would not be inappropriate development in the Green Belt. In this respect it would not conflict with Policy DP13 of the Tandridge Local Plan Part 2 Detailed Policies 2014 (LP) in relation to construction of new buildings in the Green Belt. In the same terms, there is no conflict with the Framework's aim of preventing inappropriate development that is, by definition, harmful to the Green Belt.

### *Character and appearance*

9. The appeal site, comprising an existing large metal barn with shallow pitched roof is being used to dry-store logs, residential furniture and other items, and is accessed via a long private laneway off the Tilburstow Hill Road, is located within an Area of Great Landscape Value (AGLV). Views of the appeal site are largely confined to the neighbouring dwellings on either side and the stables and sand school to the rear. The surrounding gently undulating farmland and areas of woodland substantially limit wider public views into the site. Accordingly, the site's character and appearance are experienced predominantly in relation to Norbryght House and the adjacent dwelling, which form its immediate context.

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<sup>2</sup> APP/M3645/W/23/3326161

10. The proposed development, incorporating front and rear dormers, a covered porch and a first-floor timber-clad front projection, would reflect some of the design characteristics evident in the two neighbouring dwellings. However, the predominant use of a smooth render finish would appear incongruous and would result in a visually prominent feature that would fail to respect the prevailing character.
11. Moreover, the proposed development would introduce a crown roof form that would appear incongruous when viewed alongside the adjoining dwellings, both of which feature pitched roofs. Whilst this design would maintain a ridge height comparable to that of the existing shed, the roof form would fail to respect the pattern of the built surroundings.
12. Although there would be acceptable separation distances to the side and rear boundaries, the same cannot be said of the relationship with the front boundary. The proposed dwelling would be adjacent to two residential homes, which are set within comparatively generous plots and benefit from substantial front garden areas that contribute positively to the spacious character of the locality.
13. By contrast, the proposed dwelling would occupy a notably constrained plot, with very limited space between the front elevation and the front boundary. Consequently, when viewed alongside its immediate neighbours, the dwelling would appear visually cramped and overly confined within the site. The limited frontage would result in an unduly constrained form of development that would fail to respect the established spatial pattern of development.
14. The proximity of the site to the Surrey Hills National Landscape is noted, including candidate areas for inclusion. While I have identified harm to the character of the locality and, in turn, the more immediate countryside arising from the form and detailed design of the proposal, its scale and location would limit the impact on the wider landscape. This includes the AGLV. There is no conflict with Policy CSP 20 of the Tandridge District Core Strategy (October 2008) (TDCS) in this respect.
15. In light of the above, the proposed development would have an adverse effect on the character and appearance of the area, and would conflict with Policy DP7 of the LP, which seeks that development proposals, amongst other things, respect and contribute to the distinctive character, appearance and amenity of the area.
16. The proposed development would also be contrary to Policies CSP 18, and CSP 21 of the TDCS, which collectively, require development to, among other things, protect the character and, distinctiveness of the countryside and, locality, and apply the high design standards to development.

#### *Living conditions*

17. Although the proposed scheme is adjacent to stables and sand school, no substantive evidence has been put to me which would demonstrate harm to future occupiers caused by odours and noise nuisance.
18. However, the proposed dwelling would be closely positioned between a secondary driveway serving the rear of Norbryght House on one side and the primary vehicular access to Norbryght Cottage on the other. Given the appeal site's tightly constrained nature to the front, this arrangement would result in an unacceptable

outlook for future occupants of the proposed development from the front rooms of the house.

19. Moreover, as required by the National Technical Standards 2015, a material consideration, the proposed first floor three double bedrooms would not meet the necessary space standards for this type of room. Consequently, the proposed development would not provide an acceptable standard of accommodation and would cause harm to potential future occupants.
20. On this basis, I conclude that the proposed development would not provide acceptable living conditions of future occupants, and would conflict with Policy DP7 of the LP, which among other things, requires proposals to provide a satisfactory environment for the occupiers of new development.

*Sustainable location and highway safety*

21. The area of Tilburstow Hill Road around the site is an unlit, rural route subject to a 40mph speed limit and provides no footway or dedicated cycling infrastructure, with the nearest bus services operating on the A22 Eastbourne Road and the closest railway station located at South Godstone. There are no services or local facilities within a reasonable walking distance, including from the entrance to the long access track serving the appeal site from Tilburstow Hill Road.
22. However, there is no substantive evidence that has been put to me to demonstrate the proposed residential use would generate a greater number of trips than the lawfully certified storage use of the barn (granted under application 2024/699 in September 2024). Access to the appeal site is obtained via a shared gated entrance set well back from the public highway onto a laneway. This lane's junction with Tilburstow Hill Road provides adequate visibility in both directions for vehicles emerging from the appeal site. As such, on the evidence, I am not persuaded that the proposal poses a risk to highway safety.
23. Nonetheless, the limitations of the location described above lead me to conclude that use of the development would be heavily dependent on private car travel. In reaching this view I have paid regard to sustainable transport solutions varying between urban and rural areas.
24. I also agree with the Inspector's reasoning at paragraph 23 of the aforementioned appeal decision that as the proposal is only for a single dwelling, the overall impact on the pattern of growth and development in the district would be limited. This reduces the amount of weight attributed to the harm associated with this element of the proposal.
25. In light of the above, the proposal would not be sustainably located. It would conflict with Policy DP1 of the LP and Policy CSP1 of the TDCS which seeks to ensure that development is sustainably located to minimise the need to travel to services and there is a choice of mode of transport.
26. While the Council has referred to Policy CSP20 of the TDCS, given its principal relevance to National Landscapes, I am not persuaded that it is material to the consideration of this main issue.

### *Flood risk*

27. The site is located within an area at risk of flooding from surface water. No evidence has been provided to show how surface water will be managed on site and how the risk of increasing surface water flooding in the area beyond it would be managed.
28. Taking a precautionary approach to this issue, in the absence of necessary evidence, the proposal would have a harmful effect on flood risk. It would conflict with Policy DP21 of the LP which requires development to seek to secure opportunities to reduce both the cause and impact of flooding to, amongst other things, ensuring the discharge of surface run off is restricted to that of the predevelopment site.

### **Planning balance and conclusion**

29. The proposed development would have an adverse effect on the character and appearance of the area, the living conditions of future occupants of the new dwelling, would not be sustainably located and, in the absence of necessary evidence, would have a harmful effect on flood risk. There is development plan conflict arising from the harm that amounts to conflict with the development plan as a whole.
30. The Framework is clear that small sites can make an important contribution to housing delivery. Nevertheless, the small-scale nature of the proposal's potential contribution to overall delivery housing results in moderate weight being given as a benefit of the scheme. The scale of any potential local finance consideration would be small, justifying no more than limited weight.
31. Policy S3 of the Framework directs that Policy S5 should be applied, with paragraph 5 being relevant in light of the Green Belt location. Weighing things up the adverse effects of granting permission would significantly and demonstrably outweigh the benefits, when assessed against the decision-making policies in the Framework taken as a whole (in accordance with Policy S5). For these reasons, the presumption in favour of sustainable development is not a material consideration in this case.
32. For the reasons set out above, the proposal would conflict with the development plan when read as a whole. Material considerations, including the Framework, do not indicate that a decision should be taken other than in accordance with the development plan. I therefore conclude that the appeal should be dismissed.

*CM Blair*

INSPECTOR